

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPO048791: ROCIO IBANEZ vs GUSTAVO SANDOVAL, et al.

09/10/2026 in Department 43

**Motion to Compel Compliance with Business Records Subpoena Pursuant to Code of Civil
Procedure 1987.1, 2025.480**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Apartment Management Consultants, LLC's Motion to Compel Compliance with Business Records Subpoena

Tentative Ruling: Defendant Apartment Management Consultants, LLC's Motion to Compel Compliance with Business Records Subpoena is DENIED.

A deposition subpoena directed to a nonparty must be personally served before it can compel production. (Code Civ. Proc., § 2020.220, subds. (b), (c); *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1288-1289.) Here, Defendant's own evidence states that the subpoena was mailed to Laura Montes, PsyD on May 4, 2026. (Yvonne Wilson Decl., ¶ 3 & Ex. 1.) The proof of service attached to the subpoena likewise identifies the person served as "Dr. Montes Via USPS." (Wilson Decl., Ex. 1.) Because the subpoena was not personally served, it imposed no obligation on Montes and there is no enforceable failure to comply. (*In re Marriage of Moore, supra*, at pp. 1288-1289.)

The Court also notes that the motion papers were personally served on Montes on August 19, 2026. California Rules of Court, rule 3.1346 requires personal service of a motion to compel production from a nonparty deponent. Code of Civil Procedure section 1005(b) requires moving papers to be served at least 16 court days before the hearing. For the September 10, 2026 hearing, the 16th court day was August 18, 2026. No order shortening time is shown. Thus, service of the motion papers on Montes was also untimely.

Because these defects are dispositive, the Court does not reach the scope of the subpoena or any privilege or privacy issue concerning the requested mental-health records.

Moving party is ordered to serve notice of the Court's ruling.